

18STLC08931 18STLC08931

County: los-angeles

Division: Civil Law and Motion

Department: 26

Hearing date: 2026-09-01

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Case Number: 18STLC08931 Hearing Date: September 1, 2026 Dept: 26

TENTATIVE RULING:

Plaintiff State Farm Mutual

Automobile Insurance Company's Motion

to Vacate Dismissal and Enter Judgment is granted. Judgment is to be

entered in Plaintiff's favor and against Defendant Connor Kostman in the amount

of \$1,560.00 unpaid principal and costs of \$494.50.

The proposed judgment filed on

June 24, 2026 is signed and entered this date.

The Complaint as to Does 1-10 remains

dismissed, per the Court's December 20, 2018 Order.

Analysis:

On June 18, 2018,

Plaintiff State Farm Mutual Automobile Insurance Company ("Plaintiff") filed

this subrogation action against Defendant Connor Kostman ("Defendant"). Defendant

filed an Answer to the Complaint on August 15, 2018. On December 20, 2018,

Plaintiff filed a Stipulation and Order for Dismissal. The Court entered the

stipulation and dismissed the action on the same date. (Stip and Order, filed 12/20/18.)

On June 24, 2026,

Plaintiff filed the instant Motion to Vacate

Dismissal and Enter Judgment. The Motion was served on Defendant through

counsel by first-class and electronic mail. No opposition has been filed to

date.

Discussion

The instant Motion is brought under Code of Civil Procedure, section

664.6, which states in relevant part:

If parties to pending litigation

stipulate, in a writing signed by the parties outside of the presence of the

court or orally before the court, for settlement of the case, or part thereof,

the court, upon motion, may enter judgment pursuant to the terms of the

settlement. If the parties to the settlement agreement or their counsel

stipulate in writing or orally before the court, the court may dismiss the case

as to the settling parties without prejudice and retain jurisdiction over the

parties to enforce the settlement until performance in full of the terms of the

settlement.

(Code Civ. Proc., § 664.6, subd.

(a).) "Parties" include "an attorney who represents the party" and an insurer's

agent. (Code Civ. Proc., § 664.6, subd. (b).) The settlement must include the

signatures of the parties seeking to enforce the agreement, and against whom

enforcement is sought. (J.B.B. Investment Partners, Ltd. v. Fair (2014)

232 Cal.App.4th 974, 985.) The settlement agreement complies with the statutory

requirements set forth above because it was signed by both parties and their

attorneys. (Motion, Espinoza Decl., Exh. A, p. 4.)

The settlement provided that

Defendant pay Plaintiff \$9,500.00, starting with an initial payment from

Defendant's insurer on November 30, 2018, followed by monthly payments. (Id.

at Exh. A, ¶2.) The settlement agreement also provided that in the event of

Defendant's default, Plaintiff may seek judgment in the amount prayed for in

the Complaint, less credit for all payments made prior to default, plus any

court costs. (Id. at Exh. A, ¶3.) A total of \$7,940.00 was paid towards

the settlement, after which Defendant defaulted. (Id. at ¶4.) Therefore,

Plaintiff is entitled to judgment in the amount of \$1,560.00 unpaid principal (\$9,500.00

- \$7,940.00) and costs of \$494.50. (Id. at ¶7.)

Conclusion

Plaintiff State Farm Mutual

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Moving party to give notice.